

TENTATIVE RULING FOR JUNE 17, 2026

Department R12 - Judge Kory Mathewson

Rancho Cucamonga Preservation Society v. City of Rancho Cucamonga and The Previti Group (Parties in Interest) – CIVRS2601692

Motion(s): Demurrer

Movant(s): Real Party in Interest The Previti Group

Respondent(s): Petitioner Rancho Cucamonga Preservation Society

RULING: Demurrer is SUSTAINED to all causes of action, with leave to amend within ____ days.

Previti Group - to provide Order(s) and give Notice.

Evidentiary Objections

Petitioners objections to paragraph 15 and 16 of the amended Fogt declaration as improper opinion are sustained.

Meet and Confer

The meet and confer shall be in person, by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).) The parties did not properly meet and confer per Code.

In support of the demurrer, counsel for Real Party, Jonathan E. Shardlow attests he sent a meet and confer letter on March 12, 2026, and received no response. (Shardlow Decl. ¶¶ 2-3; Exh. 1.) The amended declaration provides that opposing counsel responded via email. (See Amended Shardlow Decl. ¶ 2.) This is not a code-compliant meet and confer as it should be in person, by telephone, or by video conference. Nevertheless, the Court will address the merits, but the Parties are on notice that should the matter come back again on Demurrer, the Court will take the matter off calendar barring strict compliance with the Code.

Request for Judicial Notice (RJN)

Real Party in Interest, The Previti Group (hereinafter, Real Party) requests the Court take judicial notice of Exhibits: A-D, D2, G, G1 Attachment 4, F. The RJN is granted, but not as to the truth of the matters asserted.

Real Party (Previti Group) Argument

Real Party demurs to the entire Petition and Complaint pursuant to Code of Civil Procedure section 430.10, subdivision (a) and (e) on the grounds that 1) Petitioner failed to exhaust administrative remedies as required by Public Resources Code section 21177 and that 2) the Petition fails to state facts sufficient to constitute a cause of action.

Real Party notes the Petition consists of five causes of action, each premised on alleged violations of CEQA, but argue that the Petition is jurisdictionally defective in its entirety.

Public Resources Code section 21177, subdivision (a), provides: “An action or proceeding shall not be brought [under CEQA] unless the alleged grounds for noncompliance with this division were presented to the public agency orally or in writing by any person during the public comment period provided by this division or prior to the close of the public hearing on

the project before the issuance of the notice of determination.” (See also *Citizens for Responsible Equitable Env. Dev. v. City of San Diego* (2011) 196 Cal.App.4th 515, 527 (*CREED*).) ““‘[R]elatively ... bland and general references to environmental matters’, or ‘isolated and unelaborated comment[s]’ will not suffice. ...” “‘[T]he objections must be sufficiently specific so that the agency has the opportunity to evaluate and respond to them.’”” (*Ibid.*, citations omitted.) “The purpose of the administrative exhaustion requirement is to ensure the agency has been given the opportunity to respond to objections before there is litigation.” (*Preserve Poway v. City of Poway* (2016) 245 Cal.App.4th 560, 573.)

Real Party claims that the general public opposition to the Project’s increased density, traffic, and wildlife concerns do not amount to identifying a specific deficiency in the EIR Addendum’s methodology, thresholds of significance, mitigation measures, technical conclusions, nor do they allege any specific CEQA requirement was violated.

Instead, Real Party maintains that during the public proceedings, Petitioner’s prior counsel submitted a letter, dated January 20, 2026, to the City Council (Letter), and appeared at the January 21, 2026 City Council meeting. The Letter asserted that the decision timeline was “rushed” and did not allow sufficient time to evaluate concerns about “public safety, traffic, and environmental hazards,” and raised unspecified “other concerns” about increased density. (See RJN, Exh. A.) At the City Council meeting, prior counsel stated that the City staff report “doesn’t go into [some areas] enough” regarding traffic and characterized it as redundant and inconclusive. (RJN, Exh. C [City Council Hr’g Tr., pp. 46:22–49:9].) According to Real Party, no commenter identified any specific deficiency, analytical error, omission, or inadequacy in the EIR Addendum’s analysis, methodology, thresholds of significance, mitigation measures, or technical conclusions. (See RJN, Exh. C.)

In addition, Real Party argues that paragraph 27 of the Petition is a conclusory allegation that need not be accepted as true and is contradicted by judicially noticeable facts.

Real Party argues that the “exact issue” standard applies rather than the more lenient “fairly apprise” standard.

Courts have differed as to the degree of specificity with which issues must be raised at the administrative level to satisfy the exhaustion requirement. Some courts require that the “exact issue” raised in the lawsuit must have been presented to the administrative agency. These courts have reasoned that this strict requirement is necessary to provide the agency with the opportunity to render the litigation unnecessary. (See *Sierra Club v. City of Orange* (2008) 163 Cal.App.4th 523, 535-536.) According to Real Party, the broad disagreement with density or traffic impacts without identification of a specific flaw in the environmental documentation fails to satisfy this requirement.

On the other hand, another court has stated that, although parties must “make known what facts are contested,” the fact that parties are generally not represented by counsel in administrative proceedings and cannot be held to knowledge of “the technical rules of evidence” should absolve them of the requirement to make technical legal objections. Accordingly, the court held that “less specificity is required to preserve an issue for appeal in an administrative

proceeding than in a judicial proceeding.” (*Citizens Assn. for Sensible Development of Bishop Area v. City of Inyo* (1985) 172 Cal.App.3d 151, 163.) But even under this standard, Real Party argues that the Letter, which was prepared by legal counsel, consists of vague references to a “rushed” timeline and general density concerns. Prior counsel’s conclusory statement that the staff report was insufficiently detailed on traffic, falls short of alerting the City of any specific legal theory or analytical deficiency forming the basis of the five causes of action. (See e.g., RJN, Exhs. A, C.)

As to each cause of action, Real Party argues they are all independently barred as well. As to the first cause of action, it is alleged the City violated CEQA Guidelines section 15152 (tiering), 15162 (subsequent EIR), and 15168 (program EIR requirements). Real Party claims these issues were not raised during the administrative proceedings.

As to the second cause of action, it is premised on a failure to prepare an initial study and failure to consult with responsible and trustee agencies. Real Party also argues this was not raised.

The third cause of action is premised on a failure to prepare environmental analysis. Petitioners claim the City did not complete environmental analysis consistent with Public Resources Code sections 21093, 21094, 21166, and 15168. Petitioners allege the Project’s analysis was piecemealed, the City failed to adopt feasible alternatives and mitigations measures, deferred mitigation, did not provide for effective and enforceable mitigation, and the Project is not within the scope of projects discussed in the prior environmental documents. (See Pet. at ¶¶ 38-45.) Real Party claims these issues were not raised.

The fourth cause of action alleges a failure to prepare an EIR. Specifically: “The City failed to prepare an Environmental Impact Report to address the significant environmental impacts of the Project, as required by CEQA. Environmental impacts of the Project will include, but are not limited to impacts to air quality, noise, geologic resources, historical resources, aesthetics, land use, climate change, flooding, steep hillside protection, traffic, parking, public facilities, human health and safety, fire, and cumulative impacts.” (Pet. at ¶ 47.) Petitioners challenge the environmental baseline and also claim an effect on cumulative impacts. (¶¶ 48-49.) Again, Real Party claims these issues were not raised.

The fifth cause of action alleges a failure to adopt feasible mitigation measures and alternatives, which Real Party states were not raised as well.

Rancho Cucamonga Preservation Society (Petitioners) Argument

Petitioners oppose the demurrer. Petitioners do not adequately address the problems with the allegations and recite the Petition’s relevant paragraphs arguing it is sufficient as is. Petitioner mostly takes issue with the actions of Real Party and had previously threatened a motion for sanctions. On the whole, the Court finds that the Petition does not sufficiently plead an exhaustion of administrative remedies.

The following are the allegations in the Petition that demonstrate exhaustion of administrative remedies. In paragraph 17, Petitioners allege: “Several speakers spoke in

opposition to the Project and the Addendum. As a later staff report noted, speakers cited “concerns about wildfire risk, traffic, schools, water supplies, crime, sidewalks, high density development, safety, strain on fire stations and broken promises to the community.” (Pet. at ¶ 17.) And: “Again, speakers, including a representative of Petitioner, spoke in opposition to the Project and the Addendum. Several commenters also submitted comments in advance of the City Council meeting.” (¶ 18.) It is alleged “Commenters expressed concerns that the Project would result in increased density, new building types, and increases in building height beyond the adopted EHNCP. Commenters raised concerns about the lack of facilities and infrastructure in the community. They noted inadequate evacuation routes and increased wildfire risk, including the very high fire severity zone/wildland-urban interface area. Commenters noted that the Addendum failed to analyze or mitigate the impacts of the Project.” (¶ 19.) It is also alleged that commenters express concern over changes in traffic circulation (including an inadequate analysis of Vehicle Miles Traveled” and the infeasibility of adequate fire safety while noting problems associated with steep slopes, hillsides, and the potential for erosion and flooding. (¶ 20.) Petitioners allege commenters identified impacts on school capacity and the Project did not identify the required funding, land acquisition strategies, or binding commitments to provide the necessary public facilities such as parks, fire stations, schools, and libraries. (¶ 21.)

Petitioners further allege that commenters expressed concern about the lack of adequate water resources and hydrology impacts, impacts to biological resources, and about potential exposures to toxins in the area. Commenters are stated to have noted that the Project was outside the scope of the 2019 EIR and also observed that the City could not lawfully rely on an Addendum to the 2019 EIR because the Project introduces substantial new density, new significant impacts, and increases the severity of previously identified impacts, including those related to wildfire risk, parks, schools, emergency services, and evacuation constraints. It is alleged that Commenters also contended that the City failed to provide adequate notice associated with the Project and failed to provide for adequate opportunity and time for public input. Commenters also noted that the City had failed to ensure appropriate environmental analysis. Commenters noted that an EIR was required for the Project. (¶¶ 22-24.) Petitioner generally pleads it satisfied the exhaustion requirements. (See ¶¶ 27-31.)

ANALYSIS

Petitioner’s allegations do not sufficiently support the five causes of action alleged. While the allegations do raise a number of general concerns, the exact issues are not identified. As for the CEQA issues, it is alleged that a commenter remarked on a failure to analyze or mitigate the impacts of the Project, that the Project is outside the scope of the 2019 EIR and its addendum because the Project introduces substantial new density, new significant impacts, and increases the severity of previously identified impacts, including those related to wildfire risk, parks, schools, emergency services, and evacuation constraints. (¶¶ 19, 22-24.)

Here, there are no allegations to support that the issue of tiering and lack of a program EIR was presented to the City. Likewise, there are no allegations regarding a failure to consult with responsible and trustee agencies or prepare an initial study. Thus, the first and second causes of action are not sufficiently pleaded.

As for the third cause of action, there are no allegations supporting a finding that the City was presented with comments regarding the Project and improper piecemealing, deferred mitigation, or that the City did not provide for effective and enforceable mitigation. While there is a general, conclusory allegation that the addendum failed to analyze or mitigate the impacts of the Project, the impacts at issue are not identified such that the City was placed on notice.

The fourth cause of action is less clear as there are allegations that the City was told it needed to prepare an EIR and a number of general impacts were raised. However, it is not alleged that those impacts required the preparation of an EIR and that commenters stated as much. In addition, there are no allegations that issues regarding an environmental baseline or effects on cumulative impacts were ever commented on. Thus, the fourth cause of action is insufficiently plead.

As to the fifth cause of action, there are no allegations that commenters raised the issue as to whether there was a failure to adopt feasible mitigation measures and alternatives.

The Opposition does, however, raise a significant point regarding Real Party's presentation of the evidence submitted with its request for judicial notice. Though Petitioners did not object to the RJN directly, they refer to it as 'if the Court considers it.' Petitioners take issue with the fact that it appears the administrative record itself includes more comments that could support its Petition that were not presented in the RJN. Further, Petitioners strongly disagree with the characterization of the RJN evidence, and as noted above, that the Court sustained Petitioner's objections affecting Real Party's improper opinion evidence regarding these documents. Based on the RJN evidence, Real Party suggests that in none of the comments is there any support for any of Petitioner's allegations. The Court disagrees. The Court's review of the voluminous submission of documents that several issues raised in letters and comments could support at least some of the causes of action presented by Petitioner.

Though the Petition is currently too generally alleged for the Court to find Petitioners exhausted their administrative remedies, the RJN evidence alone suggests that it is possible for there to be successful amendments. The Opposition refers to the RJN evidence and cites materials that are not alleged in the Petition—this alone shows the ability to amend. Finally, Petitioners note there may be additional comments that were made but not part of this RJN. Petitioners also note that the record may be growing and there may be additional comments or letters that were submitted, which can support their Petition.

Consequently, the demurrer is sustained in its entirety, but with leave to amend.

Dated: June 17, 2026

Judge Kory Mathewson